

does not mean that the mediation was reasonably necessary to the litigation.

The fallacy of “*post hoc, ergo propter hoc*” (lat. “after this, therefore because of this.”) applies here. Just because something came after does not mean it caused it. Merely because the mediation was followed in time by the Plaintiffs’ dismissal of the case does not mean the mediation caused the dismissal, or was reasonably necessary to the litigation. The court would only be speculating that the mediation was reasonably necessary to the litigation on the record here.

As to Line 15, fees of \$220 for servicing the gate, the motion to strike is **granted**. The Defendants’ invoice, “for a service call on the gate,” to “reset the limit switches on the double swing gate,” appear to be ordinary service work or repair work. It does not appear to be a litigation driven inspection cost. That it may have been initiated by the Defendants in response to Plaintiff’s inspection of the gate as “proactive servicing,” as described by the Defendants, does not make it a litigation cost. It does not appear to be a mere “inspection,” rather, it appears to be regular servicing of the gate.

In summary, as to Line 13, Models enlargements, and photocopies of exhibits: \$2,459.57, the motion to strike or tax costs is **denied**. As to Line 15, Mediation fees: \$5,400, the motion to strike is **granted**. As to Line 15, fees of \$220 for servicing the gate, the motion to strike is **granted**.

3. 9:00 AM CASE NUMBER: C23-02656
CASE NAME: MARIA ANGUIANO VS. JOHN BALQUIST
HEARING IN RE: JOINDER OF MOTION FOR TERMINATING SANCTIONS AGAINST PLAINTIFF
ALEJANDRA CHAVEZ ORTIZ
FILED BY: BALQUIST, JOHN
TENTATIVE RULING:

The unopposed motion of Defendants Bethel Islands Estates MHC, LLC and Monte Christo Communities, LLC (Defendants) for Terminating Sanctions against Plaintiff Alejandra Chavez Ortiz is granted. Plaintiff Chavez Ortiz’s Complaint against Defendants is dismissed with prejudice in its entirety.